

Monita Naorem Aged About 22 Years vs Oinam Devananda Singh Aged About 33 ... on 1 April, 2025

Author: A.Guneshwar Sharma

Bench: A.Guneshwar Sharma

NON-REPORTABLE

IN THE HIGH COURT OF MANIPUR
AT IMPHAL

Matrimonial Appeal No.2 of 2018

Monita Naorem aged about 22 years, w/o
Oinam Devananda Singh and D/O N.
Inaoba Singh of Oinam Sawombung
Makha Leikai, PO Lilong & PS Wangoi,
Imphal West District, Manipur at present
Nambol Makha Leikai, PO & PS
Nambol, Bishnupur District, Manipur.

... Appellant/Defendant

-Versus-

Oinam Devananda Singh aged about 33 years,
s/o O.Angou Singh, of Oinam Sawombung
Leikai, PO Lilong, PS Wanngoi, Imphal
West District, Manipur.

... Respondent/Plaintiff

BEFORE
HON'BLE THE CHIEF JUSTICE MR.D.KRISHNAKUMAR
HON'BLE MR. JUSTICE A.GUNESHWAR SHARMA

For the Appellant :: Mr. H. Dijen, Advocate

For the Respondent :: Mrs. I. Lenibala, Advocate

Date of hearing :: 27.01.2025

Date of order :: 01.04.2025

O R D E R (CAV)

(JUSTICE A. GUNESHWAR SHARMA) [1] By the present Appeal, appellant/wife is challenging the impugned judgment and decree dated 15.12.2017 passed by the learned Judge, Family Court, Manipur in Matrimonial (Divorce) Case No.168 of 2016. By the impugned order, the marriage between the appellant and the respondent/husband was dissolved on the ground of adultery committed by the appellant/wife. The main ground of challenge, amongst others, is that the impugned judgment and decree lacks material evidence and the learned Trial Court decided the case on presumption without any material evidence.

[2] The facts leading to filing Mat (Div) Case No.168 of 2016 is that the appellant/defendant was married with the respondent/plaintiff and their marriage ceremony was solemnized on 21st day of March, 2014. The marriage was registered with the Registrar of Marriage, Imphal on 26.03.2014 with Sl. No. 54 of 2014 under the Hindu Marriage Act, 1955. In the 2nd week of October, 2016, respondent/plaintiff lodged a complaint for abduction, for enticing and taking away of his wife by one Hanjabam Rajesh @ Boicha @ Shyamsunder Sharma (accused) and lodged complaint on 16.10.2016 with the Women Police Station, Bishnupur, under Sections 366/368/34 IPC and FIR No.27 (10) 2016 WPS BPR was registered. Further, it is stated that the accused and the defendant surrendered themselves to the IO of the case on 27.10.2016 along with a pre arrest bail order of the accused and the appellant/defendant gave her statement that she was not abducted by anybody and later the appellant/defendant was handed over to her parents. After engaging a lawyer to represent her under Section 13 of the Family Court Act, 1984, the wife did not appear in the divorce case and was proceeded ex-parte.

[3] Finding of the learned Judge, Family Court, Manipur is that the evidence of the respondent/plaintiff proved that the wife (appellant/defendant herein) had voluntarily cohabited with the said accused (whom she eloped/was allegedly abducted) while her marriage with her husband (the respondent/plaintiff herein) was still subsisting and such acts of the appellant/defendant rendered their marriage a dead marriage thereby constituting the grounds for divorce. Vide impugned order dated 15.12.2017, the marriage solemnized on 21.03.2014 between the appellant/defendant and the respondent/plaintiff was dissolved and the Marriage Certificate dated 26.03.2014 bearing Sl. No. 54 of 2014 was also cancelled.

[4] Being aggrieved by the impugned order, the appellant/defendant filed appeal under Section 19 of the Family Court Act, 1984 against the judgment/decreed dated 15.12.2017 passed by the learned Judge, Family Court, Manipur in Mat. (Div.) Case No. 168 of 2016. The appellant denied the allegation of her co-habitation with one Hanjabam Rojesh Sharma. It is urged that the decree of divorce was on the sole basis of the presumption of cohabitation with another person during the subsistence of marriage. The same was without any material and was not proved. It is asserted that neither the appellant nor the third person has ever been convicted by the court in the alleged FIR case. During the course of hearing, the appellant also has raised the question of non-joinder of necessary party (the adulterer) in the divorce case as the decree of divorce was solely based on the ground of adultery. [5] During the pendency of the present appeal, the respondent filed an additional affidavit dated 23.01.2025 for bringing on record the subsequent fact that the appellant

married again with one Laishram Raju Singh. The wife of the said Raju Singh, namely Ibeyaima Yangoijam filed a Matrimonial (Divorce) Suit No. 22 of 2022 against her husband Raju and the appellant herein in the Family Court, Manipur. This fact is not disputed by the appellant.

[6] Mr. H. Dijen Singh, learned counsel for the appellant submits that the divorce case was not maintainable due to non-joinder of necessary party, ie, the adulterer, as the divorce was granted on the sole ground of co-habitation with stranger during the subsistence of the marriage. It is also pointed out that such allegation is not substantiated by any material evidence.

[7] On the other hand, Mrs. I. Lenibala, learned counsel for the respondent submits that with the subsequent event of the appellant's marriage with one Raju, the appeal has become infructuous. It is pointed out that even if the appellant succeeds in the appeal, the earlier marriage cannot be restored due to the second marriage of the appellant. It is emphasised that the appeal is reduced to a pure question of academic. She relies on the decision of Rajasthan High Court in the case of Gopal Singh v. Shanker Singh reported as 1978 O Supreme (Raj) 387: 1978 O WLN 477 [referring to AIR 1974 SC 505] to the point that 'A court will not decide an academic question, the answer to which cannot affect the position of one party or the other.

[8] During the course of hearing, this Court enquired from Mr. H. Dijen, learned counsel for the appellant about the factum of second marriage of the appellant and he admitted the same. However, he avers that the divorce proceeding was bad for non-joinder of necessary party, ie, the adulterer when the divorce was based on the sole ground of adultery. On the other hand, to the pointed question whether the appellant will be ready to live with the respondent in case the decree of divorce is set aside by this Court, Mr. H. Dijen, learned counsel for the appellant answers in negative.

[9] This Court is of the opinion that the appeal has become a pure question of academic, where the outcome of the appeal will not affect the position of the party. It is the settled principle of law that the court does not decide infructuous and pure academic question and such question be left open to be decided in appropriate case. In the case of Peerless General Finance & Investment Co. Ltd. v. Poddar Projects Lts: (2007) 2 SCC 431, Hon'ble Supreme Court observed that the appeal became infructuous and the questions raised therein left open for decision in an appropriate case. Similar view was held in the case of Union of India v. A M Overseas: (2006) 6 SCC 19 that the appeal became infructuous and the question of law raised therein was directed to be decided in appropriate case.

[10] With the subsequent event of the marriage of the appellant with another person, the appeal has become infructuous and the question raised herein of non-joinder of adulterer in the divorce proceeding based on the sole ground of adultery, has been reduced to a pure question of academic importance. Accordingly, the appeal is dismissed as infructuous, keeping the question of non-joinder of necessary party (ie, adulterer) open, to be decided in appropriate case. No cost.

[11] Registry is directed to prepare appellate decree. Return case record along with a copy of this order.

JUDGE

CHIEF JUSTICE

FR/NFR
Priyojit

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